

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 03/12/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C25-02856

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: YADAV ENTERPRISES, INC.,

TENTATIVE RULING:

Defendant Yadev Enterprises, Inc.'s Demurrer to Complaint or, in the Alternative, Motion to Compel Mediation and Arbitration with Motion to Strike is **denied**.

Background

Plaintiff law firm Van De Poel & Levy, LLP (VDPL) filed this action for breach of contract and common counts on October 2, 2025, seeking to recover \$74,300 in unpaid attorney fees from its former client Yadav Enterprises, Inc. (Yadav) and its principal Anil Yadav.

On December 5, 2025, Yadav filed this Demurrer to Complaint or, in the Alternative, Motion to Compel Mediation and Arbitration with Motion to Strike. Yadav seeks dismissal of the complaint or, in the alternative, an order compelling mediation and arbitration and staying the action. Yadav contends that VDPL filed suit in contravention of the parties' retainer agreement, which requires that any fee dispute first be mediated and, if unsuccessful, submitted to binding arbitration under the rules of the Contra Costa County Bar Association pursuant to Business and Professions Code sections 6200 through 6206.

Yadav further moves to strike VDPL's claim for attorney's fees on the ground that the retainer agreement makes mediation a condition precedent to the recovery of fees, and that VDPL forfeited any right to fees by filing suit without first attempting mediation.

In opposition, VDPL denies that it refused mediation and claims that prior to filing suit it sent Yadav a statutory notice of the right to elect bar-sponsored fee arbitration under the Mandatory Fee Arbitration Act (MFAA), that Yadav failed to invoke that right within the statutory period, and that Yadav ignored follow-up communications.

On the demurrer, VDPL argues that it is the wrong procedural vehicle because enforcement of the ADR provision turns on disputed factual issues that cannot be resolved at the pleading stage, including whether a qualifying fee dispute existed at the time suit was filed and whether Yadav's failure to invoke MFAA arbitration constitutes a waiver of the right to demand contractual ADR.

VDPL does not categorically oppose ADR and states that if the court orders it, the action should be stayed rather than dismissed. On the issue of fees, VDPL argues that the retainer agreement does not forfeit the firm's right to recover attorney's fees for failure to mediate before filing suit.

In reply, Yadav largely reiterates its moving arguments. On the attorney fee issue, Yadav argues that the attorney fee prayer should be stricken because attorney fees are only authorized in a suit to collect an arbitration award.

Analysis

The retainer agreement governing the parties' relationship contains the following dispute resolution provision:

9. Mediation and Binding Arbitration - Fees. Any dispute as to the amount of legal fees ***will first be mediated*** and if unsuccessful, will be submitted and subject to the rules of procedure of the Contra Costa County Bar Association as provided by Sections 6200 through 6206 of the California Business and Professions Code. The determination of said arbitrators will be binding, and both parties hereby waive the right to a de novo trial of said dispute. ***If Firm must thereafter file suit for the collection of any sums awarded by arbitration***, Client shall pay reasonable attorneys' fees, together with any and all costs for said collection. Irrespective of the above, if the sum owed to Firm is within the jurisdiction of the Small Claims Court or if Firm is willing to limit its recovery to the limits of the Small Claims Court, Firm may file suit in Small Claims Court and not proceed with arbitration. However, if Client asserts a claim or counter claim in excess of the jurisdiction of the Small Claims Court, then the entire

dispute must be arbitrated as set forth above. ***Without waiving the right to compel arbitration, if arbitration does not occur for whatever reason, the parties agree to litigate this matter before a judge only and expressly waive any right to a jury trial.***

(Durieux Decl., ¶ 3, Exh. B [Retainer Agreement] ¶ 9. Emphasis added; see also, Complaint, Exhs. B, C.)

Demurrer to Complaint

Yadav argues that VDPL cannot state a cause of action because its sole recourse is ADR under the retainer agreement, and thus it has no judicial remedies. The failure to arbitrate in accordance with a contractual provision to arbitrate is a defense to a cause of action. (*Charles J. Rounds Co. v. Joint Council of Teamsters No. 42* (1971) 4 Cal.3d 888.) Courts have sustained demurrers to complaints which are subject to arbitration provisions. (See, e.g., *Rogers v. Peinado* (2000) 85 Cal.App.4th 1 [overruled on other grounds in *Brennan v. Tremco* (2001) 25 Cal.4th 310]; *Leon Handbag Co. v. Leather, Luggage & Handbag Workers* (1969) 276 Cal.App.2d 240.) As stated by the California Supreme Court, where a plaintiff seeks to litigate issues covered by an arbitration provision and has not pursued the arbitration remedy, a defendant may choose to “demur or move for summary judgment on the ground that plaintiff has failed to exhaust arbitration remedies.” (*Charles J. Rounds Co.*, *supra*, 4 Cal.3d at 898.)

VDPL attached the retainer agreement to the complaint, and the complaint is focused solely on Yadav's alleged failure to pay fees, so the dispute falls within the scope of paragraph 9. On its face, then, the complaint implicates the ADR provision. However, whether the ADR provision actually bars this action depends on facts that do not appear on the face of the pleadings. Both parties' papers contain discussion of extrinsic matters, including the circumstances surrounding VDPL's pre-suit communications and Yadav's alleged failure to respond to the MFAA notice. (See Declarations of Durieux and Schwarz.) A demurrer “tests the pleadings alone and not the evidence or other extrinsic matters.” (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Those facts cannot be considered on demurrer.

Because enforcement of the ADR provision turns on disputed factual issues that cannot be resolved on the pleadings alone, the demurrer is overruled.

Motion to Compel Mediation and Arbitration

In the alternative to dismissal, Yadav seeks an order compelling VDPL to submit the matter to mediation to be followed by binding arbitration if mediation is unsuccessful. The authority in the moving papers addresses the court's power to compel arbitration under Code of Civil Procedure section 1281.2. Yadav cites no legal authority under which the court may compel the parties to mediate as a condition precedent to arbitration, or otherwise.

The motion to compel is therefore denied without prejudice.

Motion to Strike Attorney Fees

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving

to strike must appear on the face of the pleading or by way of judicial notice. (*Ibid.*, § 437.)

Code of Civil Procedure section 1033.5, subdivision (a)(10) provides that attorney's fees are recoverable as an item of costs to the prevailing party only when authorized by contract, statute, or law.

Here, Yadav moves to strike VDPL's attorney's fees claim as unauthorized, relying principally on *Johnson v. Siegel* (2000) 84 Cal.App.4th 1087 and *Frei v. Davey* (2004) 124 Cal.App.4th 1506, arguing that VDPL forfeited its right to fees by filing suit without first mediating. Those cases arose under the California Association of Realtors standard form purchase agreement, which contains an express provision stating that a party who commences an action without first attempting mediation "shall not be entitled to recover attorney's fees, even if they would otherwise be available to that party in any such action." (*Johnson, supra*, 84 Cal.App.4th at p. 1100; *Frei, supra*, 124 Cal.App.4th at p. 1509.) In opposition, VDPL argues that paragraph 9 contains no such forfeiture language and that Johnson and Frei are therefore inapposite. On reply, Yadav argues that because this is a breach of contract action rather than a suit to collect sums awarded by arbitration, the condition that triggers entitlement to fees under paragraph 9 will never materialize.

The court agrees that paragraph 9's fee provision contemplates a post-arbitration collection action and not a general prevailing party fee award. The retainer agreement contains a separate fee provision that Yadav addresses in passing. Paragraph 12 provides: "If Firm must initiate arbitration and/or litigation for the collection of any sums, Client shall pay reasonable attorneys' fees, together with any and all costs for said collection." (Durieux Decl., ¶ 3, Exh. B [Retainer Agreement] ¶ 12.) Yadav contends that paragraph 12 likewise provides no basis for fees because VDPL "bypassed" the mandatory ADR steps.

Whether paragraph 12 authorizes fees in this case is not something the court can resolve on a motion to strike. The answer depends on whether VDPL was obligated to initiate this litigation, a question that is bound up with disputed facts about the parties' pre-suit communications and conduct. On this record, the court cannot conclude that VDPL is not entitled to recover attorney's fees.

In any event, "there is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533; accord, *Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 497 [error to strike attorney fees sought under Code of Civil Procedure section 1021.5, because there is no pleading requirement involved].) Thus, striking the prayer would not foreclose VDPL from seeking fees if a basis to award them is established during the litigation.

The motion to strike is denied.

Disposition

Based on the above, the motion is denied. Yadav seeks to compel mediation and arbitration and VDPL has expressed willingness to participate in ADR if ordered. Nothing in this order prevents the parties from pursuing mediation and arbitration consistent with their agreement, or from stipulating to a stay of this action pending completion of that process.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01164
CASE NAME: ALEJANDRO TORRES VS. B & M TEAR OFF, INC.
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: TORRES, ALEJANDRO
TENTATIVE RULING:

This matter has been reassigned to Department 16 and reset to July 15, 2026.

3. 9:00 AM CASE NUMBER: C22-01284
CASE NAME: DUSTIN GRAHAM VS. ALLIED WASTE SYSTEMS, INC.
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL AND PAGA SETTLEMENT
FILED BY: GRAHAM, DUSTIN
TENTATIVE RULING:

This matter has been reassigned to Department 16 and reset to July 15, 2026.

4. 9:00 AM CASE NUMBER: C23-02357
CASE NAME: LISA ROSS VS. CHENETTE CARTER
HEARING ON SUMMARY MOTION
FILED BY: ROSS, CHARLIE
TENTATIVE RULING:

Before the Court is Defendant Charlie Ross' Motion for Summary Judgment.

The Motion is **denied without prejudice** as outlined below.

Procedural Background

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023. On December 2, 2025, Defendant Charlie Ross sought and obtained a hearing date for the motion for summary judgment/adjudication. The Order set the hearing date for March 12, 2026. It also specifically stated: "You are ordered to file the motion within 7 calendar days of this order." (All caps removed.)

Over two months later, on February 10, 2026, Defendant Charlie Ross filed the instant Motion for Summary Judgment ("Motion").

Legal Standard – Notice

Code of Civil Procedure section 437c(a) provides, in pertinent part: "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. . . . If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc. § 437c(a)(2).) The summary judgment statute does not

specifically address electronic service of notice.

California Code of Civil Procedure section 1010.6, which relates to electronic service of documents, states, in pertinent part that “[a]ny period of notice, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days....” The statute specifically states that this extension does not apply to extend the time for filing: (1) a notice of intent to move for a new trial; (2) notice of intention to move to vacate judgment under Section 663a; or (3) a notice of appeal. (Cal. Code Civ. Proc. § 1010.6 (a)(3)(B)). As a summary judgment motion is not excluded from this list, an extra two days need be added to the notice period for such motions.

Courts have concluded the minimum notice period, plus additional notice depending on the manner of service of the notice of the motion, cannot be waived or reduced by the Court. (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115 [“The subdivision does not contain any language authorizing courts to shorten the 75-day notice period.”].) (See also *Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 768 [“[T]he express mandatory language of Code of Civil Procedure section 437c, subdivision (a) makes clear the Legislature intended to deprive trial courts of the power to shorten the notice period for hearing summary judgment motions.”].) The opposing party does not have to show prejudice for the Court to find the notice defective; the notice is invalid unless the opposing party expressly consents to a shorter notice period. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267.)

Analysis

Initially, it does not appear to the Court that notice of the Motion was properly provided to Plaintiff. The relevant portion of the Proof of Service (PoS) is below:

8	On July 31, 2025, I served a copy of the accompanying document(s) described herein, to the	
9	recipients stated below.	
10	DOCUMENTS	
11	I. DEFENDANTS NOTICE AND MOTION FOR SUMMARY	
12	JUDGMENTMEMORANDUM OF POINTS AND AUTHORITIES.	
13		
14	RECIPIENTS	
15	Lisa Ross	
16	1260 Turk Street	
17	San Francisco, CA 94115 (510)776-0112	
18	The method of service was as follows:	
19	☐	By personal service to the address(es) listed above.
20	☐	By placing a copy of the document described above for deposit with the United States Postal Service, in a sealed envelope, with postage prepaid, for collection and mailing on the same date following ordinary business practices. I am readily familiar with the business practice of processing correspondence for mailing with the United States Postal Service.
21	☒	By emailing to the address(es) listed above where noted.
22	☒	By faxing to the fax number(s) listed above.

Several problems present themselves upon reviewing the PoS. First, it indicates defense counsel

served the document “[o]n July 31, 2025.” That date is over four months **before** Defendant requested the hearing date for the Motion. It is also over six months **prior** to the date Defendant filed the Motion, which is also the date defense counsel signed the Motion. The statement cannot be accurate.

4 5 6 7 8 9 10 11 12	This motion is based on this notice, the attached memorandum of points and authorities, the declaration of counsel, the court file, any evidence presented at hearing, and such further argument or evidence as may be presented at the hearing. Dated: February 10, 2026 Respectfully Submitted, The T. Scott Law Group,  Taira Scott Attorneys for Defendant
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Additionally, the PoS indicates the “method of service” was via: (1) “emailing to the address(es) listed above where noted,” and (2) “faxing to the fax number(s) listed above.” The recipient information, however, does not include an email address or a fax number. While there is a phone number listed, there is no indication that the number is a fax number – as opposed to a telephone number. Given that fax numbers are much less prevalent, some indication that the number is a fax would normally be included.

Given the above, there is insufficient evidence to show that the Motion was properly served on Plaintiff.

Even if the Court were to find that the documents were properly served, the Motion was not timely served. As outlined above, the notice of motion and supporting papers must be served on the opposing party at least 83 days (when serve via fax/email) before the hearing. Given the March 12, 2026, hearing date, that means that the latest date the Motion could be served was December 19, 2025. Even if there were evidence the Motion was served the same date it was filed, that would only be 30 days between notice and the hearing – well short of the required 83 days.

“Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition.” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In “light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*Id.* at 118.)

Defendant has failed to show that the Motion was properly and timely served on Plaintiff.

Conclusion

Defendant Charlie Ross’ Motion for Summary Judgment is **denied without prejudice** to requesting a new hearing date and filing/serving the papers as required by the Code.

5. 9:00 AM CASE NUMBER: C23-03011
CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER ANSWERS AND ATTENDANCE AT**

DEPOSITION OF SHASA CURL

FILED BY: MONTOYA, ANGEL

TENTATIVE RULING:

This matter has been reassigned to Department 32 pursuant to Code of Civil Procedure section 170.6 and reset for May 29, 2026.

6. 9:00 AM CASE NUMBER: C24-00136

CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS

***HEARING ON MOTION IN RE: STRIKE CCP 425.16 AND REQUEST FOR ATTORNEY FEES**

FILED BY: BOYD, STACEY

TENTATIVE RULING:

Plaintiff Ronald Webster has sued several governmental agents and entities, including Stacey Boyd for intentional torts. A demurrer to his complaint is being heard contemporaneously with this motion. The fourth cause of action against Stacey Boyd, added August 28, 2025, is for general negligence arising out of an incident on December 20, 2024 where Plaintiff attempted to serve summons of this lawsuit through her. He alleges that Ms. Boyd accepted service on behalf of the county, but later signed a declaration indicating she could not do so. This improper service was the basis for setting aside a default judgment. Defendant Boyd now seeks to strike this cause of action pursuant to California Code of Civil Procedure section 425.16(b) (Anti-SLAPP). The Court received no timely opposition.

Section 425.16(b)(1) states: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."

"Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by [Code of Civil Procedure,] section 425.16. If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 (internal citations omitted).)

The claim in the fourth cause of action is entirely related to this pending litigation and arises out of communications that have "some connection . . . to the action." (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241.) That renders it subject to the litigation privilege. "The litigation privilege, codified at Civil Code section 47, subdivision (b), provides that a publication or broadcast made as part of a judicial proceeding is privileged. This privilege is absolute in nature, applying to all publications, irrespective of their maliciousness." (*Timothy W. v. Julie W.* (2022) 85 Cal.App.5th 648, 661-662.) The privilege "is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards." (*Action Apartment Assn, supra*, 41 Cal.4th at 1241.) The first prong of the anti-SLAPP analysis has therefore been met.

Plaintiff has not filed any rebuttal to this claim of litigation privilege. The Court finds that there is therefore no showing of probability of success on the merits. Defendant's Motion to Strike is therefore **granted**. Stacey Boyd is the prevailing party on this motion and may file a motion for attorneys' fees.

7. 9:00 AM CASE NUMBER: C24-00136
CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY IN-HOME SUPPORTIVE SERVICES PUBLIC AUTHORITY
TENTATIVE RULING:

Introduction

Before the Court is Defendant Contra Costa County In-Home Supportive Services Public Authority's ("Defendant") Demurrer. The Demurrer relates to Plaintiff Ronald Deshawn Webster's ("Plaintiff") Second Amended Complaint ("SAC") filed on August 28, 2025. The SAC is a form complaint with six general negligence cause of action attachments. Five causes of action are against Defendant Contra Costa County In-Home Supportive Services Public Authority, and one cause of action is solely against Stacey Boyd.

Defendant demurs to Plaintiff's SAC on several grounds including failure to comply with the mandatory claim presentation requirements of the Government Claims Act, vague and unintelligible, and fails to state facts sufficient to constitute a cause of action.

For the following reasons, **the Demurrer is sustained without leave to amend.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their demurrer in detailing their efforts in reaching out to Plaintiff by email and telephone regarding the First Amended Complaint and Second Amended Complaint. (Zhurnalova-Jupponov Decl. at ¶¶ 4-5, 7-8.) However, the parties were unable to reach an agreement. (Zhurnalova-Jupponov Decl. at ¶¶ 8-9.)

Request for Judicial Notice

Defendant requests the Court take judicial notice of four items: the fact that Contra Costa County In-Home Supportive Services Public Authority is a public entity, Exhibit A, the Declaration of Contra Costa County Liability Claims Adjuster Sarah Ely; Exhibit B, Plaintiff's First Amended Complaint ("FAC"); and Exhibit D, Plaintiff's Second Amended Complaint ("SAC").

In support of the fact that Contra Costa County In-Home Supportive Services Public Authority is a public entity, Defendant quotes Contra Costa County, California Ordinance Code Sec. 55-2.402, which provides in part that "The Contra Costa County in-home supportive services public authority shall be a corporate public body, exercising public and essential governmental functions, that has all the powers necessary or convenient to carry out the delivery of in-home supportive services in Contra Costa County..." Thus, this is a fact subject to judicial notice because judicial notice may be taken of "facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code §

452(h).)

Defendant relies on *Gong v. City of Rosemead* and *Fowler v. Howell* in support of judicial notice of Exhibit A, the Sarah Ely Declaration. ((2014) 226 Cal.App.4th 363 and (1996) 42 Cal.App.4th 1746, respectively).

In *Fowler*, the trial court and the Second District Court of Appeal both took notice of a declaration of a state employee familiar with the records of the Board of Control who searched and concluded that the records of the State Board of Control did not contain a claim filed by Petitioner. (*Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1752-1753; citing Evid. Code §§ 452(c), 459.) In *Gong*, the Court noted, “[i]f a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance.” (226 Cal.App.4th at p. 376.)

Accordingly, the Court takes judicial notice of Exhibit A. Under *Fowler* and *Gong*, the Court may take judicial notice that the public records from Defendant City of Richmond do not contain a claim from Plaintiff.

Exhibits B and D are both filings of this instant case and are subject to judicial notice because they are records of this court. (Evid. Code §452(d).)

Judicial notice of Defendant’s four items is granted.

Brief Factual Background

Plaintiff seeks monetary damages against Defendant Contra Costa County In-Home Supportive Services Public Authority (IHSSPA), a public entity. It is hard to decipher what events led to Plaintiff seeking monetary damages. On the last page of the SAC Plaintiff pleads that his mom was negligently cared for, funds for caregivers were misappropriated, Plaintiff was defamed. (See SAC at p. 9.)

However, Plaintiff failed to allege compliance with the claim presentation requirements of the Government Claims Act (Paragraph 9 of the form complaint was not checked). Plaintiff does request leave to amend but does not provide any theory of how he can amend his Complaint to comply with the Government Claims Act.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

To state a cause of action against a public entity, “the general rule that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded.” (*Richardson-Tunnell v. School Ins. Program* (2007) 157 Cal.App.4th 1056, 1061.) Plaintiff’s counsel must specifically identify the grounds for statutory liability against a public

entity, including citing the statute. (*Searcy v Hemet Unified Sch. Dist.* (1986) 177 CA3d 792, 802 [child injured by automobile near school only alleged “enactments” in complaint].) A plaintiff must also allege facts to show that the “cause of action lies outside the breadth of any applicable statutory immunity.” (*Soliz v. Williams* (1999) 74 Cal.App.4th 577, 585.) However, these rules do not deprive the plaintiff of the benefit of the general principle that the courts should liberally construe a complaint and generously allow amendments to cure deficiencies. (*Nestle v City of Santa Monica* (1972) 6 Cal.3d 920; *Keyes v Santa Clara Valley Water Dist.* (1982) 128 Cal.App.3d 882, 885.)

Applicable Law

As a condition precedent to a suit against a public entity, the Government Claims Act requires the timely presentation of a written claim for money or damages. (Gov. Code §§ 911.2, 945.4, 950.2.) The failure to present a timely claim bars the plaintiff from bringing suit. (*Phillips v. Desert Hospital District* (1989) 49 Cal.3d 699, 708; *Abelleira v. District Court of Appeal* (1941) 17 Cal.2d 280, 293; *Torres v. County of Los Angeles* (1989) 209 Cal.App.3d 325, 337.) The claim must be presented no later than six months after the accrual of the cause of action. (Gov. Code § 912.2(a).)

Likewise, Government Code section 950.2 states that any cause of action which is barred against the employing public entity is barred against the public employee. “It is settled that the filing of a timely claim against the employing public entity is a condition precedent to a tort action against either the public entity or the employee. (Citations.)” (*Mazzola v. Feinstein* (1984) 154 Cal.App.3d 305, 310; Gov. Code § 915(c)(1).)

Compliance with the Government Claims Act is an element of the cause of action and must be pled and proved by plaintiff. (*DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990.) Because compliance is an essential element of a damages cause of action, a plaintiff must allege facts showing compliance, or an excuse from compliance, or the complaint will be subject to general demurrer for failure to state a cause of action. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239; *Ovando v. County of Los Angeles* (2008) 159 Cal.App.4th 42, 65.) The reason that facts must be pled is because the failure to comply with the Government Claims Act is “fatal to the plaintiff’s legal action and it must be dismissed.” (*Tietz v. Los Angeles Unified School Dist.* (1965) 238 Cal.App.2d 905, 911.)

Analysis

Government Claim Presentation Requirement

Demonstrating compliance with the Claims Act is a condition precedent to maintaining a cause of action, and, thus, an essential element of Plaintiff’s claims against Defendants. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1240.) Therefore, when the judicially noticed facts show that Plaintiff did not comply with the Claims Act, the Court should sustain a demurrer. (*Id.*; *Castro v. Sacramento County Fire Protection Dist.* (1996) 47 Cal.App.4th 927, 933-934.)

Although this is a Demurrer, a public entity may, through judicial notice of its own records, demonstrate noncompliance with the Claims Act. (*Gong, supra*, 226 Cal.App.4th at p. 376 [“...the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity’s records do not show compliance.”]; *Fowler, supra*, 42 Cal.App.4th at p. 1752 [“The trial court also took judicial notice that the records of the State Board of Control do not contain a claim filed by Fowler concerning Howell’s allegedly false accusations...We likewise take judicial notice of these records.”].)

Defendant argues that Declaration of Sarah Ely establishes that Plaintiff did not serve a government claim before filing this lawsuit. Plaintiff alleges that wrongful acts and omissions by IHSSPA occurred

in 2022. (SAC, p. 1, 2, 4 and 6.) The causes of action asserted against defendant Boyd allegedly occurred in 2024-2025. (SAC, p. 5, 6.) Defendant also points out that Plaintiff failed to allege compliance with the claim presentation requirements of the Government Claims Act by failing to check the box in Paragraph 9 in the form complaint.

In opposition, Plaintiff asks the Court for leave to amend as he is actively verifying matters related to the Government Claims Act compliance and the identification of the proper public entity defendant, and that such matters are curable by amendment. (Opposition at p. 1: 21-25; p. 2: 17-19; Webster Decl. ¶¶ 2-4.) Plaintiff's Opposition does not argue the merits but rather requests leave to amend. (Opposition generally.)

Here, although Plaintiff requests leave to amend, Plaintiff does not demonstrate, with any authority, how amendment can cure the issue of failure to file a government claim with Contra Costa County. The Court concludes that Plaintiff cannot allege new facts that would cure the failure to comply with the Government Claims Act.

Uncertainty

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

The SAC lacks specific facts supporting each cause of action against IHSSPA and is also completely devoid of any factual allegations against IHSSPA. The only factual allegations are found within the body of the cause of action against Stacy Boyd. (See SAC at p. 8.) The other five negligence causes of action attachments do not contain any factual allegations and fail to give any notice to IHSSPA of the claims against it. (See SAC at pp. 4-7, 9; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) It is also unclear in what capacities each individual Defendant is being sued under, whether in their individual capacity, capacity as an employee or any other capacity. Thus, all causes of action are also subject to a general demurrer and a special demurrer under Code of Civil Procedure section 430.10.

Conclusion

For the reasons explained above, **the Demurrer is sustained without leave to amend.**

8. 9:00 AM CASE NUMBER: C24-00233

CASE NAME: LOURDES CARRILLO VS. WATERS LAUNDRIES, INC.

***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CCP 664.6 AND FOR CONTRACTUAL CONSIDERATION PLUS FEES AND COSTS, TOTALING \$7,663.50; MEMORANDUM OF POINTS AND AUTHORITIES**

FILED BY: CARRILLO, LOURDES

TENTATIVE RULING:

Plaintiff Lourdes Carillo moves to enforce a settlement agreement with Defendant Waters Laundries, Inc. Pursuant to the filings from Plaintiff, the Court understands that in November 2024 the parties reached an agreement where Waters Laundries would pay, among other amounts, \$3,000 to Plaintiff Carillo and \$2,000 in attorneys fees to counsel for Plaintiff Carillo for services rendered to her.¹ After provision of Plaintiff Carillo's W-9 form in October 2024 and execution of a final settlement agreement November 26, 2024, there has been no payment of the amounts due. Plaintiff seeks those amounts plus an additional \$2,663.30 for fees and costs arising out of this Motion, pursuant to the settlement agreement itself. The Court received no timely opposition.

Before the Court is a settlement agreement that contains the terms as claimed by Plaintiff's Motion. It appears to be signed by all parties. Plaintiff is therefore entitled to the remedy she seeks. (*See, e.g., Corkland v. Boscoe* (1984) 156 Cal. App. 3d 989, 994.) Given the lack of compliance with the settlement agreement for over one year, the Court will **grant** the Motion to Enforce the Settlement Agreement Pursuant to Code of Civil Procedure Section 664.6. Counsel have demonstrated reasonable hourly rates, hours, and costs expended in seeking to enforce the settlement agreement. **Judgment is entered in the amounts of \$3,000 to Lourdes Carillo, attorneys' fees of \$2,000, and \$2,663.50 in additional costs and fees.**

9. 9:00 AM CASE NUMBER: C24-00530
CASE NAME: JADA BROWN VS. ANTHEM DELIVERY SERVICES LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ANTHEM DELIVERY SERVICES LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
TENTATIVE RULING:

This case has been reassigned to Department 16 and the matter has been continued by stipulation and order to **November 18, 2026**.

10. 9:00 AM CASE NUMBER: C24-01788
CASE NAME: HICHAM MESNAOUI VS. LAKERIDGE ATHLETIC CLUB
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: LAKERIDGE ATHLETIC CLUB
TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, for summary adjudication filed by defendants Lakeridge Athletic Club and William Worthington. On the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 26, 2026**.

11. 9:00 AM CASE NUMBER: C24-01854

¹ The Court is deducing this provision, given that the settlement agreement indicates attorneys' fees of \$6,000, there were three plaintiffs who were party to the settlement agreement, and counsel seeks \$2,000 as principal payment at this time.

CASE NAME: REGINALD CANNON VS. MELISSA KATZ

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES AGAINST HCR MANOR CARE SRVCS**

FILED BY: CANNON, REGINALD R.

TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. brought a Motion to Compel Further Responses to Form Interrogatories, Verifications, and for Sanctions against HCR Manor Care Services, LLC (HCR). The Motion initially sought verifications to previously unverified responses as well as responses without objections given the lack of verifications. Plaintiffs also sought sanctions. After HCR supplemented and verified its responses one day before opposing Plaintiffs' Motion, the goalposts have moved and Plaintiffs now seek the responses to be amended again to adjust for late-asserted objections that they argue have been waived. They continue to seek sanctions. They no longer seek verifications, as those have belatedly been provided.

Background

This is an elder abuse case with several defendants. On December 5, 2024, Plaintiffs served Form Interrogatories, Set One on HCR. At the time, HCR was represented by counsel who now only represent certain co-defendants. On February 7, 2025, HCR served responses and objections, but the responses lacked verifications. The parties met and conferred regarding the responses and lack of verifications. In the Court's file are multiple lengthy letters from Plaintiffs' counsel, indications that the parties spoke by telephone, and *no* letters from either Defendants' prior or current counsel indicating any plans to amend, supplement, or verify the responses in a timely manner. The meet and confer process addressed several different discovery requests and responses, many of which are the subject of separate motions before the Court on additional hearing dates. With respect to the Form Interrogatories, there appears to have been only one purportedly delinquent *answer*, and that answer is not identified as delinquent in Plaintiffs' moving papers. It appears that the primary concern of Plaintiffs at the time of filing this motion was that the interrogatories were not verified. Plaintiffs filed this on October 1, 2025. On November 12, 2025, HCR replaced its counsel.

On January 28, 2026, at a Case Management Conference, the Court heard from the parties that there was voluminous discovery and that new counsel intended to supplement the discovery. The Court requested further meeting and conferring, noting that it did not wish to prepare for a motion that was mooted. The Court stated that the service of amended responses "doesn't mean you're entitled to sanctions, but they don't automatically go off calendar, but I would like the parties to meet and confer as much as they possibly can and see if ahead of the hearing you can communicate to the court any kind of at least narrowing of the issues."

HCR served amended responses with a verification on February 26, 2026. HCR filed the opposition to this Motion on February 27, 2026. Plaintiffs filed their reply, indicating that the amended responses contain new objections not previously asserted, and removed responses previously provided.

Analysis

Erroneous Separate Statement/Motion

HCR complains that Plaintiffs moved to compel verifications and responses to FROGs never propounded. In a footnote, Plaintiffs acknowledge this error and clarify they seek responses to: 1.1, 3.1, 3.2, 3.3, 3.4, 3.5, 3.6, 3.7, 4.1, 4.2, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 14.1, 14.2, 15.1, 16.1, 16.2, 16.3, 16.4, 16.5, 16.6, 16.7, 16.8, 16.9, and 16.10. The Court will therefore quite obviously only be addressing discovery actually served.

Mooting of the Motion

HCR also claims that service of verified amended responses renders this Motion moot. These verified amended responses were served over one year after the initial responses, three months after new counsel substituted in, and one day before the opposition to the Motion was filed. While the request for verifications is now a moot issue, there remain several issues to be discussed. The verifications were untimely, rendering the substantive answers untimely. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 (“Unsworn responses are tantamount to no responses at all.”).) “In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) The Court will address all ripe and relevant issues.

Waiver of Objections

Plaintiffs initially sought to compel verified answers without objection, arguing that the lack of timely verifications waived HCR’s right to assert objections. This is not correct. As HCR indicates, where objections and substantive responses are served simultaneously, timely objections are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 (“Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.”). Plaintiffs appear to concede this point. The Court will not order new responses without *any* objections.

In their reply brief, Plaintiffs note: “HCR asserts new privilege or work product objections to FROG Nos. 1.1, 4.1, 12.1, and 16.1-16.5; new privacy objections to FROG Nos. 4.1 and 4.2; new objections based on HIPAA, Evidence Code section 1151, and section 1280 et seq. of the Health and Safety Code to FROG Nos. 12.1, 12.2, 12.3, 12.6, 14.1, 14.2, 16.1, 16.2, 16.3, and 16.5; new Evidence Code section 1157 objections to FROG Nos. 16.1-16.5, and others.” With respect to the issue of HCR’s newly-asserted objections, Plaintiffs appear to be correct. Although the Court does not have the benefit of HCR’s response to this point, that is a function of HCR having served its verified responses with new objections two weeks ago, the day before it filed its Opposition. It is too late for new objections to be asserted. “It is clear from the Act that the Legislature intended that any and all objections are to be made at the earliest timely response.” *Scottsdale Ins. Co. v. Sup. Ct. (Spyglass Homeowners Ass’n)* (1997) 59 Cal.App.4th 263, 273. Privilege objections are included here. There is relief from waiver, but there must be a showing of “mistake, inadvertence, or excusable neglect.” No such showing is present here, and in any event such a showing would need to be made on

Defendant's motion. Code Civ. Pro. § 2030.290(a). The only objections that may be capable of being asserted later are those applicable to third parties.² HCR's HIPAA objections *may* be capable of being asserted, but they must be validly asserted and Plaintiffs are entitled to production of information with personal health information removed. The Court will permit supplemental motions if needed on this issue.

Further Responses

HCR argues that Plaintiffs cannot seek to compel "further responses" where the responses are there. While the Court is not certain there is anything that Plaintiffs actually seek here, it is nevertheless true that section 2030.300 is directly on point: "(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete." To the extent Plaintiffs are dissatisfied that any responses are "complete," particularly in light of the newly asserted objections, they are entitled to seek to compel further responses. Given the late-breaking amendments, however, the Court is not clear what remains to be discussed on this matter, and will permit further briefing after further meeting and conferring if necessary.

Sanctions

Finally, Plaintiffs seek an order imposing monetary sanctions against Defendant in the amount of \$6,565 as "partial reimbursement" for Plaintiffs' attorney's fees. HCR argues throughout its Opposition that their service of amended responses suffices to solve Plaintiffs' concerns and that Plaintiffs sought to proceed on their motions despite the change in counsel and promised amendments. This argument would have been substantially more compelling had HCR's amendments not arrived over a year after the original responses. Although the defect was one simply of lack of verifications, HCR cannot sit on a technical defect for a year and then throw their hands up and claim Plaintiffs have no recourse. Moreover, while the change in counsel is important, it is also notable that three and a half months passed between that substitution and amended responses, giving Plaintiffs little time between the amendment and this very hearing. Indeed, this behavior is *directly contradictory* to what the Court noted it wanted at the January 28 case management conference. HCR has provided the transcript from that hearing as an argument *against* sanctions, yet never acknowledges that its behavior in provided amended responses the *day prior* to its Opposition foreclosed any possibility of a meaningful opportunity for Plaintiffs to adjust or withdraw their Motion. Additionally, the Court must consider the behavior of HCR through its prior counsel as well.

California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." Sanctions here are appropriate. The Court is a bit confused, however, by the requested amount, as Plaintiffs have sought identical amounts in all motions, where they should be specific to each motion. The Court requires further clarification. The Court recognizes that initially, discovery responses came jointly from many

² There is a single authority suggesting that constitutional objections may not be waivable, *Heda v. Sup. Ct (Davis)* (1990) 225 Cal.App.3d 525, 529-530, but that case is inconsistent with section 2030.290(a).

defendants and much of the meet and confer process addressed several defendants jointly, and several modalities of discovery jointly, but the Court will not award duplicative monetary sanctions. Moreover, certain counsel conducted different aspects of the discovery differently and will not be subject to sanctions to the same degree.

Ruling

Plaintiffs' Motion is **Granted in Part and Denied in Part as Moot**. The Court orders HCR to serve amended responses without the objections that were first asserted on February 26, 2026. All responses should be verified no later than five business days after being served. Sanctions will be awarded, but Plaintiff must file a *brief* amended declaration regarding the amount sought for this specific motion.

12. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM**
INTERROGATORIES AGAINST PROMEDICA EMPLOYMENT SRVCS
FILED BY: CANNON, REGINALD R.
TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. have filed a Motion to Compel Further Responses to Form Interrogatories Against Defendant Promedica Employment Services LLC (PES). It appears that PES served responses to the Plaintiffs' Form Interrogatories, Set One ("FROGS") on February 7, 2025 but it has failed to verify its responses more than one year later. PES responds only, and circularly, that the Motion is premature because the FROG responses are unverified.

Plaintiffs seek an order for PES to submit verifications within 15 days of the hearing, compelling HCR to serve amended responses without objections or exercising the option to specify writings within 15 days of the hearing, and sanctions.

Background

This is an elder abuse case with several defendants. On December 5, 2024, Plaintiffs served Form Interrogatories, Set One on HCR. At the time, HCR was represented by counsel who now only represent certain co-defendants. On February 7, 2025, HCR served responses and objections, but the responses lacked verifications. The parties met and conferred regarding the responses and lack of verifications. In the Court's file are multiple lengthy letters from Plaintiffs' counsel, indications that the parties spoke by telephone, and *no* letters from PES's counsel indicating any plans to amend, supplement, or verify the responses in a timely manner. The meet and confer process addressed several different discovery requests and responses, many of which are the subject of separate motions before the Court on additional hearing dates. With respect to the Form Interrogatories, there appears to have been only one purportedly delinquent *answer*, and that answer is not identified as delinquent in Plaintiffs' moving papers.

Analysis

First, Plaintiffs are correct that Defendant PES must submit verifications to its interrogatory responses, pursuant to Code of Civil Procedure section 2030.250(a). PES may not indefinitely prevent Plaintiffs from receiving discovery by failing to submit verifications and declaring any resulting motions premature. A reasonable time has come and gone, and verifications are significantly delinquent. The requirement that a Motion to Compel may only be filed after service of verified responses does not apply to this Motion. Defendant's citation to section 2031.300 is inapplicable to a motion relating to interrogatory responses.

Second, PES does not rebut that PES has waived objections and the option to produce writings pursuant to section 2030.290, because its response was not complete. The Court is aware, however, that timely *objections* are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 ("Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.")).

It should be noted that it does appear that many of the interrogatories cited in the Separate Statement were neither propounded by Plaintiffs nor should they have been, as they do not match the type of case before the Court. The Court is only addressing those interrogatories actually propounded, as shown in Kang Exhibit 25.³ With respect to those interrogatories and the request for verifications, the Motion is **granted**. With respect to those interrogatories and the request for responses without objections, the Motion is **denied**.

Finally, Plaintiffs request an order imposing monetary sanctions against Defendant in the amount of \$6,565 as partial reimbursement for Plaintiffs' attorney's fees. It should be noted that, as of this hearing date, there are three Motions to Compel on calendar against three defendants, two of which are in a slightly different procedural posture, and yet the sanctions requests are identical for these three as well as five more motions to be heard over several coming weeks. The Court will impose appropriate sanctions but they must be specific to each motion. The Court recognizes that initially, discovery responses came jointly from many defendants and much of the meet and confer process addressed several defendants jointly, and several modalities of discovery jointly, but the Court will not award duplicative monetary sanctions. Moreover, certain counsel conducted different aspects of the discovery differently and will not be subject to sanctions to the same degree. The Court will permit supplemental filings relating to the amount of time Counsel spent on this particular motion, recognizing that some of the work overlapped with other motions.

13. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS**
AGAINST PROMEDICA HEALTH SYSTEM, INC.

³ Counsel's omnibus declaration for all eight motions heard over three separate hearing dates may have saved counsel time, but it has saddled the Court with the burdensome effort of wading through the same 934 pages of documents for each separate motion. In the future, the Court would appreciate declarations that correspond to the separate motions.

FILED BY: CANNON, REGINALD R.

TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. brought a Motion to Compel Further Responses to Form Interrogatories, Verifications, and for Sanctions against Promedica Health System, Inc. (PHS). The Motion initially sought verifications to previously unverified responses as well as responses without objections given the lack of verifications. Plaintiffs also sought sanctions. After PHS supplemented and verified its responses one day before opposing Plaintiffs' Motion, the goalposts have moved and Plaintiffs now seek the responses to be amended again to adjust for late-asserted objections that they argue have been waived. They continue to seek sanctions. They no longer seek verifications, as those have belatedly been provided.

Background

This is an elder abuse case with several defendants. On December 5, 2024, Plaintiffs served Form Interrogatories, Set One on PHS. At the time, PHS was represented by counsel who now only represent certain co-defendants. On February 7, 2025, PHS served responses and objections, but the responses lacked verifications. The parties met and conferred regarding the responses and lack of verifications. In the Court's file are multiple lengthy letters from Plaintiffs' counsel, indications that the parties spoke by telephone, and *no* letters from either Defendants' prior or current counsel indicating any plans to amend, supplement, or verify the responses in a timely manner. The meet and confer process addressed several different discovery requests and responses, many of which are the subject of separate motions before the Court on additional hearing dates. With respect to the Form Interrogatories, there appears to have been only one purportedly delinquent *answer*, and that answer is not identified as delinquent in Plaintiffs' moving papers. It appears that the primary concern of Plaintiffs at the time of filing this motion was that the interrogatories were not verified. Plaintiffs filed this on October 1, 2025. On November 12, 2025, PHS replaced its counsel.

On January 28, 2026, at a Case Management Conference, the Court heard from the parties that there was voluminous discovery and that new counsel intended to supplement the discovery. The Court requested further meeting and conferring, noting that it did not wish to prepare for a motion that was mooted. The Court stated that the service of amended responses "doesn't mean you're entitled to sanctions, but they don't automatically go off calendar, but I would like the parties to meet and confer as much as they possibly can and see if ahead of the hearing you can communicate to the court any kind of at least narrowing of the issues."

PHS served amended responses with a verification on February 26, 2026. PHS filed the opposition to this Motion on February 27, 2026. Plaintiffs filed their reply, indicating that the amended responses contain new objections not previously asserted, and removed responses previously provided.

Analysis

Erroneous Separate Statement/Motion

PHS complains that Plaintiffs moved to compel verifications and responses to FROGs never propounded. In a footnote, Plaintiffs acknowledge this error and clarify they seek responses to: 1.1,

3.1, 3.2, 3.3, 3.4, 3.5, 3.6, 3.7, 4.1, 4.2, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 14.1, 14.2, 15.1, 16.1, 16.2, 16.3, 16.4, 16.5, 16.6, 16.7, 16.8, 16.9, and 16.10. The Court will therefore quite obviously only be addressing discovery actually served.

Mooting of the Motion

PHS also claims that service of verified amended responses renders this Motion moot. These verified amended responses were served over one year after the initial responses, three months after new counsel substituted in, and one day before the opposition to the Motion was filed. While the request for verifications is now a moot issue, there remain several issues to be discussed. The verifications were untimely, rendering the substantive answers untimely. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 (“Unsworn responses are tantamount to no responses at all.”).) “In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) The Court will address all ripe and relevant issues.

Waiver of Objections

Plaintiffs initially sought to compel verified answers without objection, arguing that the lack of timely verifications waived PHS’s right to assert objections. This is not correct. As PHS indicates, where objections and substantive responses are served simultaneously, timely objections are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 (“Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.”). Plaintiffs appear to concede this point. The Court will not order new responses without *any* objections.

In their reply brief, Plaintiffs note: “PHS asserts new privilege or work product objections to FROG Nos. 1.1, 4.1, 12.1, and 16.1-16.5; new privacy objections to FROG Nos. 4.1 and 4.2; new objections based on HIPAA, Evidence Code section 1151, and section 1280 et seq. of the Health and Safety Code to FROG Nos. 12.1, 12.2, 12.3, 12.6, 14.1, 14.2, 16.1, 16.2, 16.3, and 16.5; new Evidence Code section 1157 objections to FROG Nos. 16.1-16.5, and others.” With respect to the issue of PHS’s newly-asserted objections, Plaintiffs appear to be correct. Although the Court does not have the benefit of PHS’s response to this point, that is a function of PHS having served its verified responses with new objections two weeks ago, the day before it filed its Opposition. It is too late for new objections to be asserted. “It is clear from the Act that the Legislature intended that any and all objections are to be made at the earliest timely response.” *Scottsdale Ins. Co. v. Sup. Ct. (Spyglass Homeowners Ass’n)* (1997) 59 Cal.App.4th 263, 273. Privilege objections are included here. There is relief from waiver, but there must be a showing of “mistake, inadvertence, or excusable neglect.” No such showing is present here, and in any event such a showing would need to be made on *Defendant’s* motion. Code Civ. Pro. § 2030.290(a). The only objections that may be capable of being asserted later are those applicable to third parties.⁴ PHS’s HIPAA objections *may* be capable of being

⁴ There is a single authority suggesting that constitutional objections may not be waivable, *Heda v. Sup. Ct (Davis)* (1990) 225 Cal.App.3d 525, 529-530, but that case is inconsistent with section 2030.290(a).

asserted, but they must be validly asserted and Plaintiffs are entitled to production of information with personal health information removed. The Court will permit supplemental motions if needed on this issue.

Further Responses

PHS argues that Plaintiffs cannot seek to compel “further responses” where the responses are there. While the Court is not certain there is anything that Plaintiffs actually seek here, it is nevertheless true that section 2030.300 is directly on point: “(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete.” To the extent Plaintiffs are dissatisfied that any responses are “complete,” particularly in light of the newly asserted objections, they are entitled to seek to compel further responses. Given the late-breaking amendments, however, the Court is not clear what remains to be discussed on this matter, and will permit further briefing after further meeting and conferring if necessary.

Sanctions

Finally, Plaintiffs seek an order imposing monetary sanctions against Defendant in the amount of \$6,565 as “partial reimbursement” for Plaintiffs’ attorney’s fees. PHS argues throughout its Opposition that their service of amended responses suffices to solve Plaintiffs’ concerns and that Plaintiffs sought to proceed on their motions despite the change in counsel and promised amendments. This argument would have been substantially more compelling had PHS’s amendments not arrived over a year after the original responses. Although the defect was one simply of lack of verifications, PHS cannot sit on a technical defect for a year and then throw their hands up and claim Plaintiffs have no recourse. Moreover, while the change in counsel is important, it is also notable that three and a half months passed between that substitution and amended responses, giving Plaintiffs little time between the amendment and this very hearing. Indeed, this behavior is *directly contradictory* to what the Court noted it wanted at the January 28 case management conference. PHS has provided the transcript from that hearing as an argument *against* sanctions, yet never acknowledges that its behavior in provided amended responses the *day prior* to its Opposition foreclosed any possibility of a meaningful opportunity for Plaintiffs to adjust or withdraw their Motion. Additionally, the Court must consider the behavior of HCR through its prior counsel as well.

California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” Sanctions here are appropriate. The Court is a bit confused, however, by the requested amount, as Plaintiffs have sought identical amounts in all motions, where they should be specific to each motion. The Court requires further clarification. The Court recognizes that initially, discovery responses came jointly from many defendants and much of the meet and confer process addressed several defendants jointly, and several modalities of discovery jointly, but the Court will not award duplicative monetary sanctions. Moreover, certain counsel conducted different aspects of the discovery differently and will not be subject to sanctions to the same degree.

Ruling

Plaintiffs' Motion is **Granted in Part and Denied in Part as Moot**. The Court orders PHS to serve amended responses without the objections that were first asserted on February 26, 2026. All responses should be verified no later than five business days after being served. Sanctions will be awarded, but Plaintiff must file a *brief* amended declaration regarding the amount sought for this specific motion.

14. 9:00 AM CASE NUMBER: C24-03466
CASE NAME: MASON BONDI VS. TRENT LOCKETT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT ATTACH ORDER AND ISSUANCE
FILED BY: BONDI, MASON
TENTATIVE RULING:

Given the late-filed opposition to the Application, on the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 26, 2026**.

15. 9:00 AM CASE NUMBER: C25-01311
CASE NAME: SAYED AMIR EFFATNEYAD VS. NEDA VALIASHRAFI
HEARING IN RE: MOTION TO QUASH SUBPOENA FOR PROTECTIVE ORDER & SANCTIONS
FILED BY:
TENTATIVE RULING:

Plaintiff Sayed Amir Effatneyad has filed a complaint against Defendant Deda Valiashafri for claims arising out of a construction project, including claims for defamation. Defendant alleges that Plaintiff Effatneyad was an unlicensed contractor at the time of the services. Defendant served a subpoena on the Constructor's State Licensing Board (CSLB) and Plaintiff now moves to quash that subpoena.

The filings of both parties contain substantial discussion of extraneous information unrelated to the Motion to Quash. The only question before the court at this hearing is whether the subpoena is valid: whether service was proper and whether it is properly within the Discovery Act.

Plaintiff Effatneyad states that the CSLB records are statutorily confidential and cannot be produced without a court order, a showing of good cause, and narrowly tailored requests. There is no support for this argument, nor is there indication that the subpoena was not narrowly tailored. Given the scope of the claims and relief sought, it seeks information that "appears reasonably calculated to lead to the discovery of admissible evidence." CCP § 2017.010. Defendant has therefore articulated good cause for the subpoena.

Plaintiff also claims that the "Notice of Consumer" was invalid, as it was served by email. While Defendant Valiashrafi disputes that a "Notice to Consumer" was required, Defendant notes that the Notice was mailed, with a *courtesy copy* by email. More than adequate notice was given.

The Motion to Quash is therefore **denied**.

16. 9:00 AM CASE NUMBER: C25-02104
CASE NAME: JENNIE LYNN VALDEZ SALDITOS VS. BENJAMIN D. WEBMAN
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: WEBMAN, BENJAMIN D.
TENTATIVE RULING:

Plaintiff Jennie Lynn Valdez Salditos filed this action against Defendant Benjamin D. Webman seeking a partition of real property. Service of summons and complaint were effected on August 2, 2025. After Defendant failed to file a timely answer, Plaintiff sought and received a default judgment on September 10, 2025. On November 13, 2025, Defendant moved to set aside the default judgment on grounds of excusable neglect. The Court received no timely opposition. The Proof of Service of the Motion was not signed. The Court requires Defendant to file a signed proof of service to confirm that Plaintiff was apprised of this Motion.

Defendant Webman states that he has been distracted by an “ongoing custody battle with his former significant other” as well as duties arising out of his role as caregiver for his father. He also notes that he does not object to a sale of the subject property, but desires to play a role in the process.⁵ Given the relative timeliness of Defendant’s request, the young age of the case, and the lack of opposition from Plaintiff, the Court will contingently **grant** the request upon filing of a *signed* Proof of Service.

17. 9:00 AM CASE NUMBER: C25-02647
CASE NAME: GINO CARUSO VS. ELVECIO PINHEIRO MACHADO FILHO
HEARING IN RE: FOR EXPEDITED ORDER RELEASING DEED OF TRUST & ASSIGNMENT OF RENTS
FILED BY:
TENTATIVE RULING:

Plaintiff Gino Caruso has filed a complaint against Defendant Elvecio Pinheiro Machado Filho (Filho) for torts arising out of the purchase of a property in 2015. Before the Court at present is a Motion for Expedited Order Releasing Deed of Trust and Assignment of Rents. The Court has received no timely opposition. It should be noted, however, that part of Plaintiff’s filing is premised on the failure of Defendant to respond to the Complaint, and the declaration in support of the motion contains the words “Court’s Judgment Against Defendant.” The Court sees in its file a General Denial filed on November 12, 2025, two days prior to the filing of this Motion. The Court will assume that Plaintiff simply was unaware of that filing at the time of submission of this Motion.

Civil Code §2941(b)(1) provides: “Within 30 calendar days after the obligation secured by any deed of trust has been satisfied, the beneficiary or the assignee of the beneficiary shall execute and deliver to the trustee the original note, deed of trust, request for a full reconveyance, and other documents as may be necessary to reconvey, or cause to be reconveyed, the deed of trust.” After review of the

⁵ Defendant’s papers erroneously state that this action was filed December 23, 2024 and the default was entered April 9, 2025. These dates must have been from a different case, as this case was filed July 23, 2025, with default entered September 10, 2025. The Court will look past this error, as it does not affect the decision on this Motion.

papers submitted by Plaintiff Caruso, it appears that the obligation secured has been satisfied, and therefore Defendant Filho must release the deed of trust and assignment of rents.

Plaintiff's Motion is **Granted**. The Court will not take any further action relating to *judgment* at this time, as that is not properly before the Court.

18. 9:00 AM CASE NUMBER: C25-02669

CASE NAME: CORINNE REES VS. SAMIR ROHAYEM

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS**

FILED BY: ROHAYEM, SAMIR

TENTATIVE RULING:

Defendants Samir Rohayem, Michel Rehayem, and ZMoonos, LLC have filed a Motion to Compel Production of Documents and Request for Sanctions. Plaintiff Corinne Rees opposes the motion and notes that documents have been produced. Although the instant motion is, in many ways, relatively simple, it sits in the context of a case that is far more complicated below the surface. That complexity is relevant at the very least to the dueling requests for sanctions and so the Court will address those issues to the best of its ability.

The instant case was filed on September 17, 2025. On October 23, 2025, Defendants moved for Mandatory Trial Setting Preference Pursuant to California Code of Civil Procedure 36. Plaintiff did not object. That Motion, itself subject to a request to expedite, was heard and granted January 27, 2026.⁶ At that time, the Court gave a trial date of April 6, 2026.

On November 21 and 24, 2025, Defendants served discovery on Plaintiff, including a Request for Production of Documents. Plaintiff requested, and Defendants granted an extension for responses to January 13, 2026. On that date, counsel for Defendants sent a letter to counsel for Plaintiff noting non-receipt of responses. At some point that same day, Plaintiff did indeed serve responses with objections but also indications that "Responding party will comply with this request." Additional similar responses on an additional set of requests were served January 21, 2026. The Court has no record of any communication between the parties—in either direction—between January 13, 2026 and February 3, 2026 aside from that letter and the discovery responses mentioned immediately above.

It is notable that in the middle of this time, the earlier-filed motion relating to trial preference was granted and a trial date was set. It does not appear to the Court that Defendants raised this ongoing discovery dispute to the Court to factor into trial setting.⁷ It is the urgency of the trial date—and its corresponding imminent discovery deadline—that Defendants note in their Reply briefing as being at least partially responsible for their need to proceed to Motion quickly.

On February 3, 2026, Defendants filed the instant motion. By declaration, they averred—and

⁶ The order was entered March 5, 2026.

⁷ This Court has now taken over the docket of the prior judicial officer who handled that Motion and no notes, minute orders, or transcripts reflect a discussion of pending discovery disputes.

Plaintiff does not dispute—that they had received no documents responsive to their discovery requests. The hearing on the motion was advanced to March 12, 2026.

On February 12, 2026, approximately one month after serving written responses to the Requests, Plaintiff produced documents. Plaintiff argues that Defendants failed to meet and confer adequately and rushed to file this motion. Defendants respond that no meeting and conferring was required, pursuant to Code of Civil Procedure 2031.320.(a). Defendants are correct. At no time does it appear that Plaintiff (a) indicated when she would produce documents, (b) responded to Defendants' January 13 letter regarding the lack of documents, or (c) indicated that she needed more time to gather or review documents for production. Unless there is correspondence of which the Court is unaware, the entirety of the communication on this issue was the January 13 letter demanding immediate compliance with discovery obligations, written discovery responses, service of motion papers, and production of documents on February 12, 2026.

Before getting to the sanction issue, the Court will address what remains of the initial motion. It does appear that Plaintiff has *now* produced almost all responsive documents. Defendants' Reply identifies only one area of responsive documents that is lacking: decedent Gregory Schoepp's phone so that they can inspect its contents. It appears that the phone is in Plaintiff Corinne Rees's actual possession and that discussions to convey the phone for extraction have occurred but not yet yielded the actual phone. Absent any indication from Plaintiff that the telephone is outside the scope of permissible discovery, **it must be produced immediately** *either* to Defendants' expert or to a mutually agreed-upon third party vendor for extraction.

Finally, both parties have sought sanctions. Defendants request \$6,902 (\$3,570.00 + \$3,332.00) for work on the Motion and Reply, stating that Plaintiff's non-compliance with her obligations and opposition to the Motion have forced Defendants to incur unnecessary work in that amount. In turn, Plaintiff requests sanctions in the amount of \$4,400, stating that Defendants' rush to file resulted in an unnecessary Motion where the parties could have resolved the issue without court intervention.

To agree with Plaintiff, the Court must find that Defendants should have made more of an effort at resolution prior to filing. "An evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered. Although some effort is required in all instances, the level of effort that is reasonable is different in different circumstances, and may vary with the prospects for success." (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432–433 (internal citation omitted).) While the Court sympathizes that Defendants seem to be operating on an extremely short timeline—some of which is by Defendants' own creation in advancing a trial date without leaving any room for discovery disputes—it also appears that Plaintiff's radio silence and lack of communication have led Defendants to believe they must take action to get any relief.⁸ In the context of what the Court has before it, a

⁸ Defendants have submitted a Request for Judicial Notice regarding certain previous filings in prior cases between the parties. The Supplemental Declaration of Ian Hansen also contains facts relating to this prior history between the parties. The Court suspects that Judicial Notice is proper, but will wait to see whether this tentative ruling is contested and whether Plaintiff objects to the RFJN before ruling on it. Nevertheless, the Supplemental Declaration is sufficient information for the Court to glean all it truly needs to know to move forward on *this* motion, which is

reasonable sanction on Plaintiff is appropriate, but that sanction will not be the full amount requested by Defendants. Under the totality of the circumstances and the limited nature of what is being considered and ordered, the Court **will award sanctions against Plaintiff Corinne Rees and her counsel jointly in the amount of \$3,500.**

Defendants' Motion is therefore **granted.**

19. 9:00 AM CASE NUMBER: C25-02683
CASE NAME: ASCENT INVESTMENTS COMPANY LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR
ISSUANCE OF WRITE RE: HD 2670 WALNUT BLVD MEMBER, LLC AND PREMDIP S. DHOOT FILED BY:
ASCENT INVESTMENTS COMPANY LLC
FILED BY:

TENTATIVE RULING:

Parties to appear. The applications are conditionally granted, as discussed below. Prior to the hearing, plaintiff shall re-file a signed copy of the Declaration of Jason Steinle in Support of the Reply, originally filed on January 16, 2026 and again filed on March 4, 2026, both unsigned. Should plaintiff require additional time to file, a continuance will be discussed at the hearing.

Background

Before the Court are two applications by plaintiff, Ascent Investments Company, LLC, to attach property of defendant, HD 2670 Walnut Blvd Member, LLC and its member and manager, defendant Premdip S. Dhoot.

This case arises from a loan by plaintiff to defendant, HD 2670 Walnut Blvd Member, LLC. On August 24, 2022, defendant, Premdip S. Dhoot, signed a promissory note on behalf of HD 2670 Walnut Blvd Member, LLC. The note was for the principal amount of \$200,000, to be re-paid, along with an additional \$48,328.77 "Lender's Return," by January 1, 2024 ("Maturity Date"). (See Declaration of Jason Steinle in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter "Steinle Decl.," Ex. 1 [Promissory Note] and Ex. 2 [Payment Guaranty].)

The complaint alleges five causes of action (though a numbering error might lead one to believe there are four): (1) Breach of Written Promissory Note, (2) Breach of Guaranty Agreement, (3) Account Stated, (3) Money Lent; and (4) Money Paid, Laid Out, and Expended. The second cause of action is alleged against Dhoot and the others are against HD 2670 Walnut Blvd Member, LLC.

Plaintiff contends defendants refuse to comply with their repayment obligations and intend to sell the properties it seeks to attach here. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (See Steinle Decl., Ex. 3 [demand email].) In November 2025, plaintiff filed the present application for right to attach order and order for writ of attachment.

that there is a history between these parties and Defendants expeditious behavior—both with respect to seeking trial preference and with bringing this motion sooner than most attorneys would—arrives in the context of substantial delays in investigating and resolving these parties' disputes.

With respect to HD 2670 Walnut Blvd Member, LLC, plaintiff seeks to attach 13 real properties and the following assets held in the name of the LLC: “real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles.” With respect to Dhoot, plaintiff seeks to attach, “[a]ll real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, and general intangibles” in his name.

The applications are opposed by defendants, who argue plaintiff has failed to meet his burden to establish probable validity of the claim and has not shown a risk of irreparable harm. Defendants further contend the value of the property sought to be attached exceeds the amount of plaintiff’s claim. Defendants generally agree with the background provided by plaintiff, including the amount of money loaned, the date loaned, and the terms of the documents.

Defendants argue that parties agreed to an oral modification of the Maturity Date after the project suffered significant schedule delays and setbacks. The alleged new date would be “after the Project was finished and Defendant was able to list the Property for sale.” (Declaration of Premdip S. Dhoot in Support of Opposition, hereinafter “Dhoot Decl.,” ¶18.) Accordingly, defendants argue the alleged debt is not yet due, but do not give a specific date. Based on such purported modification, Dhoot argues there was no default on the promissory note that would trigger his liability on the personal guaranty.

In reply, plaintiff denies any oral modification. A reply declaration by plaintiff’s managing member, Jason Steinle states “At no time did the Plaintiff agree verbally or in writing to extend the maturity date of the underlying August 24, 2022 Promissory Note or August 24, 2022 Guaranty Agreement.” (Declaration of Jason Steinle in Support of Reply, ¶12.) The declaration, however, is not signed. A previous version of the same declaration was filed on January 16, 2026 and that declaration is also not signed. An unsigned declaration is not competent evidence. (Code Civ. Proc., § 2015.5.) The Court assumes that counsel would not file a declaration unless it represented what Mr. Steinle would state under penalty of perjury. Absent such statement under penalty of perjury, however, the Court is not prepared to grant the applications.

Exemptions

A defendant who opposes a right to attach order must give notice of his objection, “accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised.” (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

Here, Dhoot claims his personal property is exempt because it is not among the items listed in Code of Civil Procedure §487.010, subdivision (c) and amounts to less than “\$8,725 in the aggregate.” He also represents that he holds no title to any items listed in Code of Civil Procedure §487.010, subdivision (c).

Plaintiff has not opposed the claim of exemption. The right to attachment of property owned by a natural person requires an adequate description. “Personal property” is insufficiently specific, as set forth in the opposition. Accordingly, all references to “personal property” shall be omitted from the description of property with respect to Dhoot.

Standard

Attachment is a pre-judgment creditor’s remedy. Generally, an order of attachment may be

issued only in an action for a claim of money that is based upon an express or implied contract where the total amount of such claim is a fixed or readily ascertainable amount not less than \$500. (Code Civ. Proc., § 483.010, subd. (a).) A plaintiff may obtain a right to attach if the plaintiff establishes the probable validity of plaintiff's claim. (Code Civ. Proc. § 484.090, subd. (a)(2).) "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc. § 481.190; see also *Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120; see *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) The Court must also find that the attachment is not sought for a purpose other than the recovery on the claim upon which the request for attachment is based and that the amount to be secured by the attachment is greater than zero. (Code Civ. Proc. § 484.090.)

Discussion

The applications and supporting declarations adequately support the amount claimed and make all required representations to procure attachment. Assuming plaintiff files a signed reply declaration responding to the issue of modification, plaintiff successfully demonstrates probable validity of its claims, and that the claims are ones upon which attachment is proper. (Code Civ. Proc., § 484.090(a)(1)-(2).) The attachment is not sought for purposes other than recovery on the claim, which amounts to a sum greater than zero. (*Id.* at (a)(3)-(4).)

Probability of Prevailing

Assuming plaintiff files a signed reply declaration responding to the issue of modification, plaintiff demonstrates a probability of prevailing on its breach of contract claim. Defendants have raised a modification defense that involves an adjustment to the due date. The defense appears to be insufficient for four reasons. First, while a written contract may be modified by oral agreement in certain circumstances (including execution and where there is new consideration), there is insufficient evidence of such circumstances here. (Civ. Code, § 1698 (b)-(c).) Second, with respect to the purported modification, defendants do not address the statute of frauds (Civil Code, §1624), which would bar oral modification. Third, while the promissory note is silent as to how the lender would extend the payment deadline (see Steinle Decl., Ex. 1, §3), the guaranty requires modifications of the underlying documents to be in writing (Steinle Decl., Ex. 2, ¶4.1). Finally, and perhaps most importantly, Steinle's reply declaration (assuming it is signed and refiled) denies that parties adjusted the Maturity Date.

Irreparable Harm

Defendants contend plaintiff fails to show "irreparable harm." Code of Civil Procedure, § 485.010 describes the "great or irreparable injury" prerequisite to obtaining attachment. The showing is satisfied where there is a danger that property may become unavailable. Such conditions exist where "[u]nder the circumstances of the case, it may be inferred that there is a danger that the property sought to be attached would be concealed, substantially impaired in value, or otherwise made unavailable to levy if issuance of the order were delayed until the matter could be heard on notice." (*Id.* at subd. (b)(1).)

This standard is satisfied here. While plaintiff presents no specific evidence that defendants intend to conceal funds or deprive plaintiff of an available source of recovery, defendants confirm in the opposition papers that some project properties have already been sold and the inferences permitted by the above-cited statute are sufficient.

Value of the Property Sought to be Attached

With respect to defendants' argument that they do not hold title to certain properties listed in the applications, and that the value of the properties sought to be attached exceeds the debt, their concerns are unfounded. Any property not owned by a particular defendant cannot be attached. Further, assuming such attachment leads to a lien, once the debt is satisfied, no further recovery would be warranted.

Undertaking / Conclusion

An undertaking is required prior to the issuance of a writ of attachment in order to pay the defendant for any wrongful attachment. (Code Civ. Proc., § 489.210.) Defendants argue the amount should be equal to the amount of the claimed debt (\$248,328.77). Plaintiff responds that the defendants were required to show, through declarations, that the undertaking should be more than the statutory default, which is \$10,000. (Code Civ. Proc., § 489.220 (a).)

Code of Civil Procedure, § 489.220 (b) states, the Court "shall" order an increased amount, but only where it finds "the probable recovery for wrongful attachment exceeds the amount of the undertaking." Here, defendants do not dispute that there is a debt owed (or that will be owed) in the amount shown in the documents. It is thus not clear to the Court what the monetary consequence of wrongful attachment would be. Accordingly, the amount of the undertaking shall be \$10,000 per defendant for a total amount of \$20,000.

Subject to (1) the plaintiff posting an undertaking in the amount of \$20,000, (2) the striking of "personal property" in Attachment 9 to the Application with respect to Dhoot, as identified above, and (3) filing a signed declaration by Steinle by the time of hearing, the applications will be granted.

20. 9:00 AM CASE NUMBER: MSC22-00460
CASE NAME: NATURA MANAGEMENT,LLC VS. AGRA TECH, INC.
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AGRA TECH, INC.

TENTATIVE RULING:

This matter has been reassigned to Department 16 pursuant to Code of Civil Procedure section 170.6 and reset for April 15, 2026.

21. 9:00 AM CASE NUMBER: MSC22-00460
CASE NAME: NATURA MANAGEMENT,LLC VS. AGRA TECH, INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 2ND AMENDED COMPLAINT**
FILED BY: AGRA TECH, INC.

TENTATIVE RULING:

This matter has been reassigned to Department 16 pursuant to Code of Civil Procedure section 170.6 and reset for April 15, 2026.